M.P. Madhya Keshtra Vidyut Vitran Nigam ... vs M.P. Electricity Regulatory ... on 22 February, 2011

Before the Appellate Tribunal for Electricity
(Appellate Jurisdiction)

Appeal No. 10/2010

Dated :22nd February, 2011
Present: Hon'ble Mr. Justice M. Karpaga Vinayagam, Chairperson
Hon'ble Mr. Rakesh Nath, Technical Member

M.P. Madhya Kheshtra Vidyut Vitran Nigam Ltd. ... Appellant(s)
Versus
M.P. Electricity Regulatory Commission & Ors. ....Respondent(s)

Counsel for the Appellant(s): Mr. M.G. Ramachandran,
Ms. Swapna Seshdri,
Ms. Sneha Venkataramani

Mr. Praveen Kumar Jain for M.P. Poorv
Mr. Pawan Jain for M.P. West
Mr. A.R. Verma for M.P. Central

Counsel for the Respondent(s): Ms. Surbhi Sharma for MPERC

ORDER

In pursuance of the orders passed by this Tribunal earlier, it is submitted that a letter has been presented to the Commission with regard to issue of double charge relating to augment charges. According to the Appellant they have not been charged in ARR and collection has been made only from the applicant seeking connection to the distribution mein.

We have heard the learned counsel for the Commission also. It is appropriate to direct the Appellant to file a separate petition before the Commission with regard to the said issue, and the Commission may consider the issue by giving opportunity and pass orders on merits.

Accordingly, the Appeal is disposed of by remanding the matter to consider afresh. The Commission may decide the issue uninfluenced by any of the observations made in the impugned order.

(Rakesh Nath) (Justice M. Karpaga Vinayagam)
Technical Member Chairperson

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